

HOUSE No. 4997

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, January 29, 2026.

The committee on The Judiciary, to whom were referred the petition (accompanied by bill, House, No. 1760) of Russell E. Holmes relative to sentencing for felony murder; and the petition (accompanied by bill, House, No. 1928) of Francisco E. Paulino and Frank A. Moran relative to accomplice and joint venture criminal liability, reports recommending that the accompanying bill (House, No. 4997) ought to pass.

For the committee,

MICHAEL S. DAY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to accomplice and joint venture criminal liability.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 274 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking out, in line 4, the word “felon.” and inserting in
3 place thereof the following language:-

4 felon; provided, however, that whoever is punished under this section when the predicate
5 felony is a violation of section 1 of chapter 265 may be punished in the manner provided for the
6 punishment of the principal felon or for any term of years.